

21 May 2026

David Charles Lewis & Leonie Margaret Lewis
40 Frenchs Forest Road East
FRENCHS FOREST NSW 2086

Sent by email and post: d1966l@outlook.com
leonie_lewis013@hotmail.com

Dear Sir/Madam

NOTICE OF INTENTION TO GIVE A DEVELOPMENT CONTROL ORDER

Section 9.34 of, and Part 6 to Schedule 5 to, the *Environmental Planning and Assessment Act 1979*

Premises: **No. 40 Frenchs Forest Road East FRENCHS FOREST NSW 2086**
 Lot: Lot 2 DP 504523
Reference No: **EPA2026/0071**

In accordance with clause 8 of Part 6 of Schedule 5 to the *Environmental Planning and Assessment Act 1979* (the "EP&A Act") you are given notice that Northern Beaches Council (the "Council") has formed the opinion that unauthorised development has been undertaken at the above-mentioned premises for which a planning approval is required but has not been obtained. Accordingly, Council proposes to give a development control order (the "Order") which, should it issue, will require that this unsatisfactory state of affairs be rectified and otherwise remedied by the carrying out of the action specified in the Order.

The actions required, the relevantly applicable circumstances and the reasons for the proposed Order are detailed below in the description of the terms of the proposed Order Council intends to give.

You are invited to make representations to Council in accordance with clause 13 of Part 7 of Schedule 5 to the EP&A Act as to why an Order in terms of that described in the attached document should not be given or as to the terms of, or period for compliance with the proposed order.

For the purpose of making representations, you or someone on your behalf (namely, an Australian legal practitioner or agent) may make representations to Council. Any representations are to be made in writing within a period of **twenty-eight (28) days** from the date of this notice of intention to give a development control order.

If your representations are unsuccessful or no representations are made, Council may determine:

- to give an order in accordance with the proposed order, or
- to give an order in accordance with modifications made to the proposed order, or
- not to give an order.

Alternatively, you may ignore this notice of intention to give a development control order and an Order will be given either in the same terms as intended or with modified terms.

Orders and fines may be issued, or Court proceedings may be commenced without further notice. If the subject non-compliance has been complied with during this time, it is **your responsibility** to advise Council in writing.

Furthermore, under clause 37 of Part 12 of Schedule 5 to the EP&A Act and clause 281C of the Environmental Planning and Assessment Regulation 2021, Council may also elect to issue a separate **compliance cost notice** to you in respect to all or any reasonable costs or expenses incurred by Council in connection with an investigation that leads to giving an Order, as follows:

- as respects to the preparation or serving of this notice of intention to give a development control order – up to an amount of \$500 and,
- as respects to an investigation that leads to the giving of an Order – up to an amount of \$1,000.

Please note that these are separate fees that may be applicable in addition to any fines issued to you and your costs involved in resolving the matter that is the subject of the notice of intention/order.

Notice in respect of land or building owned or occupied by more than one person.

In accordance with clause 40 of, Part 13 of, Schedule 5 to the EP&A Act:

- (1) If land, including land on which a building is erected, is owned, or occupied by more than one person:
 - (a) a development control order in respect of the land or building is not invalid merely because it was not given to all of those owners or occupiers, and
 - (b) any of those owners or occupiers may comply with such a development control order without affecting the liability of the other owners or occupiers to pay for or contribute towards the cost of complying with the order.
- (2) Nothing in this Part affects the right of an owner or occupier to recover from any other person all or any of the expenses incurred by the owner or occupier in complying with such a development control order.

If you require any further information in relation to this matter, please contact, Greg Evans on 8495 5330 during normal business hours between 9:00am to 5:00pm or by council@northernbeaches.nsw.gov.au

Yours faithfully



Greg Evans
Building Compliance Officer
ENVIRONMENTAL COMPLIANCE

DESCRIPTION OF THE TERMS OF THE PROPOSED ORDER COUNCIL INTENDS TO GIVE

DATE: TBA

TO: David Charles Lewis & Leonie Margaret Lewis

PREMISES/LAND: No. 40 Frenchs Forest Road East FRENCHS FOREST NSW 2086

Lot: Lot 2 DP 504523

Northern Beaches Council (the "Council") gives you an Order(s) as specified in the table to Part 1 of Schedule 5 to, the *Environmental Planning and Assessment Act 1979* (the "EP&A Act") in the circumstance and for the reasons detailed below.

ORDER/S GIVEN:

To Do What:	Circumstances When:
<u>Order No. 3 – Demolish Works Order:</u> To demolish or remove a building, specifically: Within ninety (90) days from the date of this order: Demolish the rear shed, including but not limited to its roofed area and the section attached to the dwelling and lean too structure at the rear of the shed extending to the rear boundary and the concrete slab, located in the rear yard of the property known as 40 Frenchs Forest Road East, Frenchs Forest being Lot 2 in DP 504523.	A building: requiring a planning approval is erected without approval.

REASONS FOR ORDER

- Council received a complaint alleging that unauthorised building work have been undertaken at 40 Frenchs Forest Road East FRENCHS FOREST NSW 2086.
- An inspection undertaken by Council Officer on 29 April 2026 revealed the following observations:
 - A shed is under construction and is in the rear of this subject site. The shed is attached to the rear of the dwelling via roof sheeting.
 - The shed is located within 900mm of the adjoining boundaries therefore not complying with Clause 2.18 Development Standards (1) (d) of Subdivision 9 Cabanas, cubby houses, ferneries, garden sheds, gazebos and greenhouses which requires a minimum setback of 900mm from each lot boundary.
 - The shed is not connected to the existing stormwater system as no downpipes and guttering is installed. Nor are the agg lines connected to the existing stormwater system therefore not complying with Clause 2.18 Development Standards (1) (g) of Subdivision 9 Cabanas,

cubby houses, ferneries, garden sheds, gazebos and greenhouses which requires a minimum setback of 900mm from each lot boundary.

- The retaining walls are located within 1m of the boundary and therefore do not comply with Clause 2.30 Development Standards (b) of Subdivision 15 Earthworks, retaining walls and structural support.
 - No documentation has been submitted demonstrating that the works have not adversely impacted the root system of the native tree or other parts of tree and therefore do not comply with Clause 1.16 (3) (b) of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008
 - No documentation has been provided demonstrating the works comply with the Deem to Satisfy provisions of the Building Code of Australia or are structurally adequate as required by Clause 1.16 (1) (a) of State Environmental Planning Policy (Exempt and Complying Development Codes) 2008
 - The premises is located within land Zone R2 Low Density Residential under the provisions of the Warringah Local Environment Plan 2011.
3. The building work are not considered exempt from development consent under the provisions set out within the *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* or any other environmental planning instrument. Furthermore, a search of Council's records indicates that no prior approvals have been obtained for the works to have occurred. Therefore, it is considered that the building work are in contravention of Section 4.2 of the *Environmental Planning and Assessment Act 1979*, as follows:
- 4.2 Development that needs consent** (cf previous s 76A)
- (1) **General** If an environmental planning instrument provides that specified development may not be carried out except with development consent, a person must not carry the development out on land to which the provision applies unless—
- (a) such a consent has been obtained and is in force, and
 - (b) the development is carried out in accordance with the consent and the instrument.
4. The undertaking of building work without prior Council consent, effectively removes the rights of surrounding residents, neighbours, stakeholders and interested parties to make submissions in relation to the premises through the assessment procedure under the *Environmental Planning and Assessment Act 1979*.
5. As the building work was undertaken without consent, an assessment of the amenity and environmental impacts has not been carried out by Northern Beaches Council pursuant to Section 4.15 of the *Environmental Planning and Assessment Act 1979*.
6. The undertaking of building work without prior consent is inconsistent with the objects of the *Environmental Planning and Assessment Act 1979*. in particular:
- (c) to promote the orderly and economic use and development of land,
 - (g) to promote good design and amenity of the built environment,
 - (h) to promote the proper construction and maintenance of buildings, including the protection of the health and safety of their occupants,
7. As the building work have not been subject to a formal development assessment or the issuing of a construction certificate, it is unknown if the structural integrity or fire rating of the building works meet the requirements of the Building Code of Australia (BCA) and the building work may pose a serious risk to the occupants, neighbouring properties or the general public if the structure were to fail and collapse or in the event of a fire.

8. Council has considered the principles outlined within Council's *Compliance and Enforcement Policy* and has determined that the issue of the Order is appropriate.

TIME PERIOD FOR COMPLIANCE WITH ORDER

You are directed to carry out the terms of the Order within the following specified periods:

- (a) Item 1 in the Order No. 3, these works must be carried out within **ninety (90) days** from the date of this Order;
- (b) Item 1 in the Order No. 10, these works must be carried out within **one hundred and twenty (120) days** from the date of this Order;

OFFENCE

It is an offence against the *Environmental Planning and Assessment Act 1979* (NSW) not to comply with any order: see section 9.37 of the EP&A Act. In the event that an order is issued, and you do not comply, Council may issue penalty infringement(s) or commence Court proceedings to compel compliance and/or undertake a criminal prosecution.

PENALTY

The maximum penalty for non-compliance with this order is (a) in case of a corporation \$5 million, and for a continuing offence a further \$50,000 for each day the offence continues; or (b) in the case of an individual \$1 million, and for a continuing offence a further \$10,000 for each day the offence continues: see section 9.52 of the EP&A Act.

EXECUTION OF ORDER BY COUNCIL

If you fail to comply with the terms of an order Council may do all such things as are necessary or convenient to give effect to the terms of the order, including the carrying out of any work required by the Order, and may, among other things, recover from you the costs incurred by Council in so doing: see clause 34 of Part 11 of Schedule 5 to the EP&A Act.

RIGHT OF APPEAL AGAINST ORDER

If you wish to appeal against an Order you must appeal to the **Land and Environment Court**, Level 4, 225 Macquarie Street, Sydney NSW 2000, within **28 days** after the service of the Order on you: see Part 8, Division 8.5, Clause 8.18 of the *Environmental Planning and Assessment Act 1979*.

ORDERS THAT MAKE OR ARE LIKELY TO MAKE RESIDENTS HOMELESS

Where relevantly applicable, Council has prior to the issue of an order considered whether residents would be able to arrange satisfactory alternative accommodation in the locality. In the event that Council concluded that any resident would not be able to arrange satisfactory alternative accommodation in the locality, Council will provide, or has already provided, the resident with information as to the availability of satisfactory alternative accommodation in the locality together with any other assistance that Council considers appropriate: clause 2 of Part 5 of Schedule 5 to the EP&A Act.

